

Court No. - 86

Case :- APPLICATION U/S 482 No. - 12485 of 2021

Applicant :- Radhey Shyam

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Dharendra Kumar Srivastava

Counsel for Opposite Party :- G.A.

Hon'ble Umesh Kumar,J.

Heard learned counsel for the applicant and learned A.G.A. for the State.

This application has been moved with the prayer to quash the impugned summoning order dated 26.9.2019 passed by the learned Additional Sessions Judge, Court No.1/ Special Judge, Chandauli as well as the entire criminal proceedings of Criminal Case No. 105 of 2019 Case Crime No. 402 of 2019, under Section 135 Indian Electricity Act, P.S.- Mughalsarai, District- Chandauli pending before the court of Additional Sessions Judge, Court No.1st/ Special Judge, Chandauli. Further proceedings of the aforesaid case are also prayed to be stayed.

Learned counsel for the applicant submits that the applicant has deposited Rs.5000/- as summon fee on 20.07.2019 and Rs.33,766/- on 26.8.2019 as compounding fee, copy of the same is annexed to affidavit filed in support of this application. It is further submitted that the Executive Engineer of Electricity Department issued a letter on 27.08.2019 to the Inspector In-charge, Police Station- Mughalsarai, District- Chandauli that as the applicant has deposited the summoning fee as well as the compounding fee in pursuance of Section 152 of Electricity Act as well as U.P. Electricity Supply Code, as such the FIR may be quashed. It is further submitted that the offence is compoundable in nature.

As the charge sheet has been submitted in the Court, the applicant shall approach before the Court with the entire facts and receipts of payments within a period of one week and raises his factual grievances before the concerned Court the same shall be decided within a period of one week thereafter.

In view of the above, no coercive action shall be taken against the applicant for fifteen days from today pursuant to the aforesaid case.

The application under Section 482 Cr.P.C. is accordingly **disposed off**.

Order Date :- 25.8.2021

Fhd.